

MANILA LAW COLLEGE
Statutory Construction (2 units)
Syllabus Outline (Topics Only)
Instructor: Atty. Jason P. Raposas

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I. Background of the Study of Statutory Construction

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- A. Statutes
 - B. Statutory construction
 - C. Situs of construction
 - D. Purpose of construction
 - E. When to construe?
 - F. Ambiguity/Vagueness
 - G. Statutory construction v. judicial legislation
 - H. Legis interpretado legis vim obtinet
 - I. Kinds of construction
 - a. Strict v. liberal
 - b. Prospective v. retrospective
 - J. Extent of the power to construe

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II. Prelude to the exercise of the power

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- A. Verba legis non est recedendum
 - B. Absoluta sententia expositore non indigent
 - C. Dura lex Sed Lex

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III. Basic Guidelines in the Construction and Interpretation of Laws

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- A. General Guidelines
 - a. Intention of the Statute must prevail
 - b. Legislative Intent is determined principally from the language of the statute.
 - c. Verba intentioni, non e contra, debent inservire
 - d. The Statute must be capable of interpretation, otherwise, it is inoperative.
 - e. In interpreting a statute, it must be interpreted to accomplish a purpose
 - f. Nemo tenetur ad impossibile
 - g. Construction to avoid absurdity and injustice
 - h. Consideration of the statute as a whole
 - i. Give effect to every word or sentence of a statute
 - B. Considerations within the Statute
 - a. Ubi Lex Non Distinguit Nec Nos Distinguere Debemos
 - b. Ejusdem Generis Rule

- c. Noscitur a sociis Rule
- d. Doctrine of Necessary Implication
- e. Expressio unius est exclusio alterius (Doctrine of Negative Implication)
- f. Reddendo singula singulis
- g. Casus omissus pro omisso habendus est
- h. Meaning not reflected in the language of the Statute should not be considered

- C. Considerations outside the Statute
 - a. Generalia Specialibus non derogat
 - b. Lex posterior derogat priori
 - c. Lex specialis derogat legi generalis
 - d. Lex posterior generalis non derogat legi priori specialis
 - e. Borrowed Statute Rule
 - f. Interpretare et concordare leges legibus est optimus interpretandi

IV. Aids to Construction

- A. Intrinsic Aids
 - a. Preambles
 - b. Title
 - c. Punctuations
 - d. Capitalizations
 - e. Headnotes or epigraphs
 - f. Lingual Text
- B. Extrinsic Aids
 - a. Policy of the law
 - b. Purpose of the law
 - c. Legislative History
 - d. Legal environment
 - e. Contemporaneous Construction
 - f. Dictionaries
- C. Presumptions
 - a. Presumption against unconstitutionality
 - b. Presumption against injustice
 - c. Presumption against implied repeals
 - d. Presumption against ineffectiveness
 - e. Presumption against absurdity

V. Interpretation of Words and Phrases

- A. General Words and Phrases
 - a. Generic words
 - b. Words with commercial meaning
 - c. Words with technical or legal meaning

- B. Specific Words
 - a. Disjunctive and conjunctive words: "or" "and"
 - b. Mandatory and directory words: "may" "shall"
- C. General words construed generally
- D. Progressive interpretation
- E. Words with commercial meaning
- F. Words with technical or legal meaning
- G. Meaning of word qualified by purpose of statute
- H. Provisos, exceptions, saving clauses
- I. Statute construed as a whole
- J. Statute construed in relation to others

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VI. Construction of Constitution and Specific Kinds of Statutes

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- A. Constitutional construction
- B. Statutes strictly construed
- C. Statutes liberally construed

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Course Requirements

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- * Class Participation: 30%
- * Midterm Exam: 30%
- * Final Exam: 40%